

**HUNTER MANAGEMENT AGREEMENT BETWEEN
WYOMING GAME AND FISH COMMISSION
AND
CITY OF CHEYENNE**

Access Yes Program Coordinator: Kelly Todd
Access Yes Program Doc #: 25H0002 (20H0063)

1. **Parties.** The parties to this Hunter Management Agreement (Agreement) are the Wyoming Game and Fish Commission (Commission), by and through the Wyoming Game and Fish Department (Agency), whose address is: 5400 Bishop Boulevard, Cheyenne, WY 82006, and City of Cheyenne (Cooperator), whose address is: 2101 O'Neil Avenue, Cheyenne, WY 82001.
2. **Purpose of Agreement.** The purpose of this Agreement is to set forth the terms and conditions by which the Cooperator shall allow public access for hunting, without charge, to the Hunter Management Area (HMA) described in Attachment A, which is attached to and incorporated into this Agreement by this reference.
3. **Term of Agreement.** This Agreement is effective when all parties have executed it (Effective Date). The Performance Period of the Agreement is from July 1, 2025 through June 30, 2030. All services shall be completed during the Performance Period.
4. **Payment.** The Agency agrees to pay the Cooperator a base amount of six thousand, seven hundred seventy-six dollars and zero cents (\$6,776.00) and a bonus amount of one thousand, three hundred fifty-five dollars and zero cents (\$1,355.00) for a total annual payment amount of eight thousand, one hundred thirty-one dollars and zero cents (\$8,131.00). Annual payment will be distributed between November 1 and January 31 of each year during the Performance Period of this Agreement. The total payment under this Agreement shall not exceed forty thousand, six hundred fifty-five dollars and zero cents (\$40,655.00). The Agency shall pay the Cooperator within forty-five (45) days after the Agency has approved the Cooperator for payment.
5. **Responsibilities of Cooperator.** The Cooperator agrees to:
 - A. Allow, without charge to the public, hunting access by one (1) or more modes of transportation, at the Cooperator's discretion, such modes include foot, horseback, motorized access (or any combination thereof) to individuals on the 17,000 (seventeen thousand) acres in Laramie County, Wyoming for the purpose of hunting species agreed upon by the Agency and Cooperator for the duration of the hunting season—as defined by Agency regulations (including emergency regulations)—and as further modified by any Cooperator's conditions, if applicable. The map showing the location of the properties is included as Attachment A.
6. **Responsibilities of Agency.** The Agency agrees to:
 - A. Issue permission slips and hunting rules for the HMA;
 - B. Provide wildlife law enforcement on the HMA;
 - C. Notify the public of the location of the HMA and the terms of access to the HMA;
 - D. Provide and install signs which direct the public to parking area(s) and access points to the HMA; and

E. Pay the Cooperator in accordance with Section 4 above.

7. **Special Provisions.**

A. **Termination.**

- (i) This Agreement may be terminated by either party upon thirty (30) days written notice.
- (ii) The Agency may terminate this Agreement immediately if the Cooperator fails to comply with the terms of this Agreement, including, but not limited to, restricting public access to the HMA during the Agreement period.
- (iii) If this Agreement is terminated for any reason prior to the stated ending date in Section 3 above, payment of the total annual payment remaining for the year in which termination occurred shall be prorated for that year.
- (iv) If ownership of the HMA changes, this Agreement shall terminate upon the date of closing.

B. The Cooperator warrants that it possesses adequate legal or equitable rights to grant the above-described access to the HMA.

8. **General Provisions.**

A. **Amendments.** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, and executed by all parties to this Agreement.

B. **Applicable Law, Rules of Construction, and Venue.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms "hereof," "hereunder," "herein," and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.

C. **Availability of Funds.** Each payment obligation of the Agency is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation and which may be limited for any reason including, but not limited to, congressional, legislative, gubernatorial, or administrative action. If funds are not allocated and available for continued performance of this Agreement, this Agreement may be terminated by the Agency at the end of the period for which the funds are available.

D. **Entirety of Agreement.** This Agreement, consisting of four (4) pages; and Attachment A, consisting of one (1) page, represent the entire and integrated agreement between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control.

E. **Extensions.** Nothing in this Agreement shall be interpreted or deemed to create an expectation that this Agreement will be extended beyond the term described herein.

- F. Force Majeure.** Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party.
- G. Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing either by regular mail or delivery in person at the addresses provided under this Agreement.
- H. Sovereign Immunity and Limitations.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming and Agency expressly reserve sovereign immunity by entering into this Agreement and the Cooperator expressly reserves governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereign or governmental entities pursuant to Wyo. Stat. § 1-39-101, et seq., and all other applicable law. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.
- I. Independent Contractor.** The Cooperator shall function as an independent contractor for the purposes of this Agreement and shall not be considered an employee of the State of Wyoming for any purpose. The Cooperator shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Cooperator or its agents or employees to act as an agent or representative for or on behalf of the State of Wyoming or the Agency or to incur any obligation of any kind on behalf of the State of Wyoming or the Agency. The Cooperator agrees that no health or hospitalization benefits, workers' compensation, unemployment insurance, or similar benefits available to the State of Wyoming employees will inure to the benefit of the Cooperator or the Cooperator's agents or employees as a result of this Agreement.
- J. Indemnification.** Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.
- K. Counterparts.** This Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Agreement. Delivery by the Cooperator of an originally signed counterpart of this Agreement by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to the Agency.

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9. **Signatures.** The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The Effective Date of this Agreement is the date of the signature last affixed to this page.

AGENCY:

Wyoming Game and Fish Commission

Eric Wiltanger, Deputy Director
Wyoming Game and Fish Department

Date

Meredith Wood, Chief Fiscal Officer

Date

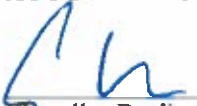
COOPERATOR:

City of Cheyenne

Patrick Collins, Mayor
Authorized Signatory for Cooperator

Date

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

 #247782

Chandler Pauling, Assistant Attorney General
Representing: Wyoming Game and Fish Department

04.18.25

Date

GF22 –
Cobblestone # 247082
Approved: 03/19/2025

**Lone Tree Creek Hunter Management Area
City of Cheyenne**

